

The CAMS Group Vulnerable Persons Policy



Vulnerable Persons Policy

What is a vulnerable person's policy?

You may at some stage have a conversation with a consumer who finds it difficult to make an informed decision or choice about an injury incurred or any accident related aid products which you are offering to them whether this be a client or a passenger involved in the incident. Examples of what may make a person vulnerable to any products offered by you are below,

- Anxiety
- Learning difficulties
- Dementia
- Language difficulties

Our vulnerable person's policy has been implemented to ensure that every consumer who is offered a product or service by you on behalf of Central Accident Management Services Ltd and Nationwide Assist Ltd has a full understanding of the service itself and can make an informed decision or choice about the outcome of their decision should they decide to utilise or not utilise the service being offered by you without their judgement being clouded by any condition or suffering themselves.

If the consumer is vulnerable, this does **NOT** mean to say that you cannot offer our services to them but make no mistake, you **MUST** identify any vulnerability and take the steps stated throughout this policy to ensure that the consumer makes a correct and informed choice or decision and that a consumer "Yes" to any question, product or service is definitely an informed decision and **NOT** a submission.

What products or services should you apply the Vulnerable person's policy to?

The vulnerable person's policy should be applied to absolutely any product or service offered to consumers or potential customers of Nationwide Assist Ltd which include but are not limited to the following examples;

- Personal injury (Recommending a panel solicitor to the consumer for the processing of any personal injury claim)
- Credit Hire (The offering of a like for like vehicle following a road traffic incident)
- Claims management services (The management of a non-fault parties claim from first notification of loss to recovery of all outlays)
- Insurance products.

Why is it crucial that we as a business ensure that we are aware of any vulnerable persons prior to the offering of any service?

- Anxiety
- Learning difficulties
- Dementia
- Language difficulties
- Mental health

The above are just a few examples of the types of conditions which may affect a consumer when asked by you to make a decision about any product or service offering from Central Accident Management Services Ltd or Nationwide Assist Ltd. Should a consumer suffer from any of these conditions you must be understanding and aware that for example the below example, an example of many could make it hard for the consumer to make the correct decision or worse cloud their judgement about the service being offered by you for example in the case of recommending a panel solicitor to represent the consumer in their claim for any personal injuries as a result of a road traffic incident,

Example;

The definition of anxiety is: A feeling of worry, nervousness, or unease about something with an uncertain outcome A consumer who suffers from anxiety may and will most likely feel pressured to accept following even the slightest suggestion of a product or service offering to avoid any prolonged conversation due to nervousness or unease.

The above example provided to you gives you a clear understanding of why it is crucial to ensure that we as a business and you as a member of its team, offering our services to consumers ensure that we are made aware of any condition/s which may cloud a consumer's judgement on accepting any service offered by you.

What may be the outcome of not identifying a vulnerable person prior to the offering of any service or product?

The Mental Capacity Act states that a person is unable to make a decision if they cannot understand the information about the decision to be made, cannot retain that information in their mind, cannot use or weigh that information to be used as part of the decision making process or cannot communicate their decision.

Not identifying any vulnerable persons prior to the offering of any product or service may cause the consumer to make the wrong decision, a decision that they feel forced to make in the case of suffering from anxiety or a decision made based on not fully understanding the service offered. Whatever the condition may be, it leaves the consumer vulnerable to products or services offered which they may not;

- Require
- Understand
- Be able to afford

And such, may cause that vulnerable person for example to place themselves in a difficult financial situation or worse cause their condition to worsen.

What are the DO'S AND DON'TS that you and our business can and cannot do to ensure that we identify any vulnerable persons?

You cannot;

- Directly ask or suggest to a consumer as to whether they have any condition which makes them vulnerable to our service/s offered.
- Make that person feel in any way vulnerable or point out any assumed condition.

You may and are required to;

- Use your own initiative without suggestion to the consumer of doing so to make an informed decision yourself on whether the consumer may be vulnerable by asking yourself the following questions at any stage of the call and prior to any service offering or explanation,

Does the consumer seem confused?

Are they asking any questions which are not related to the conversation being held?

Are they at any stage saying "Yes" PROMPTLY to any question being asked by you and are giving any indication that they have not taken the time to have thought about the questions being asked by you before answering them?

Are they suggesting that someone else usually makes their decisions for them e.g "My wife usually deals with things like this"?

Do they speak clear English?

Tips when talking to any vulnerable persons?

There may be many things that you can do to ensure that any vulnerable persons have a full understanding of the service offered to them by you and that they make an informed decision **ON THEIR OWN**. Below are a few examples which will help you to understand what you can do following identifying any vulnerable persons to ensure that they make their own decision after having fully understood the service/s offered.

- Begin by asking if now a good time is to talk or whether there is a better time for you to call the consumer back.
- Feed each piece of information in short brief stages, following which you allow the consumer enough time to digest this information before moving on to the next piece of information and asking at every stage whether they understand what you have explained to them.

- Ensure that you do not rush the consumer into any decision-making scenario.
- Do **NOT** assume that you know the consumer's needs, only the consumer is aware of their own needs.
- Allow the consumer to take their time in understanding and digesting all information provided to them.
- Ensure that you are **NOT** making any suggestions which may influence their decision to accept your service or product offering.
- Ask the consumer at the end of explaining each partial bit of information whether they require you to explain anything again.
- Be patient at all times.
- Following the provision of a full explanation into the product or service offered, ask that they re-iterate their own understanding of the service offered to you and ensure that you address any incorrect understanding of the service offered.
- Be calm and talk softly, clearly and slowly if required to the consumer at all times.

What you should do and consider prior to making a sale or making an agreement with the consumer to utilise the service/s offered to them by you.

- Ask yourself whether you honestly feel that any "Yes" given to you by the consumer is a genuine agreement based on the consumer having a full understanding of the product or service/s offered or whether the "Yes" it just an agreement made by the consumer with you to put an end to a prolonged conversation which they may feel uneasy about continuing due to anxiety or maybe did not understand the explanation provided to them but are to embarrassed to ask you to explain it again"
- Do you feel that the consumer has received enough information to allow them to make a correct informed decision or choice?
- Before they proceed with any agreement to a product or service offered ask them "Do you need to discuss the service offered with anyone else before making a final decision or think about you're the service offered to you today before making that final decision" And if so "Would you like me to call back later at a time which is best for you"
- If you recognise that the consumer seems flustered or agitated, then you should immediately be asking the above questions.
- Ask them "Would they feel more comfortable if a third party, maybe a family member joined a conference call between you and the consumer, listened to you explain the service or product offered again and then make a final decision following a separate private discussion between them and their trusted party

What should I do if even after carrying out and adhering to the vulnerable person's policy, I still feel that the consumer cannot or has not been able to make an informed decision or choice about the product or service/s offered by me and on behalf of the business?

In the event that you feel that a decision or choice has been made but you still feel that the consumer following your processing of the vulnerable person's policy has not made an informed decision or has not fully understood your explanation of the product or service offered to them you **MUST** seek the guidance of senior management,

- Line Manager
- Group Operations Manager

The above final decision makers will review thoroughly, listen to the call recording and make a final decision on how to proceed,

You will need to provide the above-mentioned persons with;

- The date and time of any calls made or received with the vulnerable person in relation to the service or product offered.
- The telephone number on which you made or received these calls.
- The clients claim reference.
- An explanation into why you feel that the situation requires escalation.